

Court No. - 21

Case :- WRIT - C No. - 5552 of 2018

Petitioner :- Gajendra Prasad Bhatnagar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Kumar Srivastava

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Petitioner is aggrieved with the estimate submitted by the respondent Corporation for grant of electricity connection of 5 HP load for running Pumping Set. Learned counsel for the petitioner submits that an estimate of Rs. 1,84,037/- for granting the said connection is highly excessive and there is no justification to submit such a high estimate. Sri Mahboob Ahmad, learned counsel who has accepted notice on behalf of the respondent Corporation states that the petitioner is entitled for a subsidy of Rs.68,000/- and he will have to pay only Rs. 1,17,567/-.

Learned counsel for the petitioner further submits that such a high estimate has been submitted only because the connection is not provided from the Transformer which is situated at a distance of 100 metre.

Perusal of the line chart annexed along with the estimate shows that respondent Corporation would also provide 25 KV Transformer for installation of electricity connection of the petitioner. Be that as it may, all the disputes are purely factual in nature. Clause 4.6 (f) of Uttar Pradesh Electricity Supply Code, 2005 contains provisions for adjudication of disputes regarding the estimate by competent authority. The competent authority to adjudicate the matter is one level higher than the sanctioning authority and thereafter the Consumer Grievance Redressal Forum.

In such circumstances, we dispose of the writ petition by giving liberty to the petitioner to approach the authority concerned i.e Superintendent Engineer with his grievance. The representation may be made within a period of two weeks from today along with certified copy of this order. In case, such a representation is made, the authority shall proceed to consider and decide the same in accordance with law by a reasoned and speaking order within a further period of four weeks from the date of making the representation.

Order Date :- 12.2.2018

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Hon'ble Mahesh Chandra Tripathi,J.

On the request of Shri Arvind Kumar Srivastava, learned counsel for the petitioner, the case is passed over for the day.

Put up this case again on **4.09.2018 in additional cause list.**

Order Date :- 29.8.2018

SFH